

Ram Devi v. State of U.P. & Ors.

Allahabad High Court · Division Bench · 10 February 2021 · Writ - C No. 4380 of 2021 · WRIT - C No. 4380 of 2021 · **Writ disposed; 6.14 representation directed; restore on first installment.**

HEADNOTE

Without examining the merits of a Rs.3,39,333 domestic arrears demand, the Division Bench disposed of the widow-consumer's writ by directing a representation under Clause 6.14 of the Electricity Supply Code, 2005 for payment in easy installments. If moved within two weeks, the licensee was to decide it by a reasoned speaking order after hearing, preferably within four weeks. On deposit of the first installment as fixed, the connection was to be restored, subject to timely payment of further installments, failing which the benefit of the order would be lost.

FACTUAL SUMMARY

Ram Devi, an elderly widow, obtained a domestic electricity connection on 1 August 2008 and claimed regular payment of dues. A demand notice dated 1 September 2020 sought recovery of Rs.3,39,333 without credit for Rs.30,000 deposited on 8 November 2020. Alleging non-use of supply during 2011–2012, she sought a stay of coercive recovery, payment in easy installments or one-time settlement, and a fair bill. Counsel for the Power Corporation submitted that installments could be sought under Clause 6.14 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility and restoration on first installment

HOLDING

A consumer seeking to pay electricity arrears in easy installments may be directed, without a merits examination of the demand, to move a representation under Clause 6.14 of the Electricity Supply Code, 2005, which the licensee must consider and decide by a reasoned speaking order after hearing. On deposit of the first installment as fixed by the licensee, the connection shall be restored, subject to payment of further installments within the period prescribed; default disentitles the consumer to the benefit of the order. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court disposed of the writ without merits by directing a Clause 6.14 representation for easy installments, with restoration on deposit of the first installment as fixed by the licensee. ¶ 1

instalment-facility-clause-6.14-for-financial-distress The elderly widow's request to pay arrears in easy installments was channelled through Clause 6.14, without a merits finding on financial distress. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RS.3,39,333 DEMAND AND CREDIT FOR RS.30,000 DEPOSITED ON 08.11.2020
Court expressly declined to enter into the merits. ¶ 1

NOT DECIDED — CLAIM OF NON-USE OF ELECTRICITY DURING 2011–2012 AND PRAYER FOR A FAIR BILL
¶ 1

NOT DECIDED — ENTITLEMENT TO ONE-TIME SETTLEMENT
¶ 1

